

25STCV35754 25STCV35754

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV35754 Hearing Date: July 17, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

ana helalah vete

, et al.;

Plaintiffs,

vs.

mark diamond

, et al.;

Defendants.

Case

No.:

25STCV35754

Hearing

Date:

July
17, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

demurrer

to complaint

(2)

motion

to strike portions of complaint

MOVING PARTY: Defendants Mark Diamond and
Cheryl Diamond

RESPONDING PARTY: Unopposed

(1)

Demurrer

to Complaint

(2)

Motion

to Strike Portions of Complaint

The court

considered the moving, opposition, and reply papers filed in connection with
this demurrer and motion to strike.

DEMURRER

Defendants Mark Diamond and Cheryl Diamond ("Defendants") demur to the
Complaint of plaintiffs Ana Heilala Vete and Lesly Hulse ("Plaintiffs") on the

ground that the Complaint alleges violations of overtime requirements that are inapplicable to the Plaintiffs, who, by facts alleged in the complaint, qualify as personal attendants within the definition of Labor Code section 1451, subdivision (d).

The court overrules the demurrer to the first, second, fourth, fifth, and sixth causes of action because Defendants have not shown that the Complaint alleges that Plaintiffs were personal attendants within the definition of Labor Code section 1451 subdivision (d) because Plaintiffs allege that Plaintiffs were hired “to work as Care givers for their daughter” and “that plaintiffs will provide care giver services to the defendants’ daughter in exchange of compensation from the defendants to the plaintiffs.” (Compl., ¶¶ 18, 20.) (Lab. Code, § 1451, subd. (d) [“‘Personal attendant’ means any person employed by a private householder or by any third-party employer recognized in the health care industry to work in a private household, to supervise, feed, or dress a child, or a person who by reason of advanced age, physical disability, or mental deficiency needs supervision. The status of personal attendant shall apply when no significant amount of work other than the foregoing is required. For purposes of this subdivision, ‘no significant amount of work’ means work other than the foregoing did not exceed 20 percent of the total weekly hours worked”].) The Complaint does not allege facts that show that Plaintiffs’ role as care givers was to supervise, feed, or dress Defendants’ daughter, or that Defendants’ daughter was a child or a person who by reason of advanced age, physical disability, or mental deficiency needs supervision. Thus, Defendants have failed to show that Plaintiffs, as personal attendants under the Domestic Worker Bill of Rights, have different overtime rules that apply to them. (Lab. Code, § 1454; 8 Cal. Code Regs. § 11150, subds. 1(B), 2(J).)

MOTION TO STRIKE

Defendants

move to strike portions of the Complaint, paragraphs 47, 48, 68, and 69, and Prayer for Relief paragraphs 3 and 7, on the ground that the Complaint improperly seeks the imposition of statutory penalties which are barred by the one-year statute of limitations set forth in Code of Civil Procedure section 340, subdivision (a).

Defendants

argue that this statute of limitations applies to Plaintiffs’ request for civil penalties pursuant to Labor Code section 558, subdivision (a) in relation to

the first cause of action for failure to pay wages pursuant to Labor Code sections 201 and 1194 and civil penalties pursuant to Labor Code sections 226 and 1174[1] in relation to the fourth cause of action for failure to provide wage and hour statements pursuant to Labor Code section 226, et seq.

Defendants also argue that the Complaint improperly seeks imposition of statutory penalties under Labor Code section 1198.5 and 432.

Pursuant to Code of Civil

Procedure section 340, subdivision (a), the statute of limitations for an action upon a statute for a penalty or forfeiture is one year. (Code Civ. Proc., § 340, subd. (a).)

The court grants Defendants' motion to strike paragraphs 47, 68, and 69, and Prayer for Relief paragraph 3 because the statutory penalties requested therein are barred by the one-year statute of limitations since (1) Labor Code section 558, subdivision (a) provides for civil penalties against any employer who violates any provision regulating hours and days of work in any order of the Industrial Welfare Commission which is the basis for penalties for the first cause of action, (2) Labor Code sections 226 and 226.3 are the basis for the penalties sought pursuant to the fourth cause of action and wage statement claims are subject to a one-year limitations period, and (3) Plaintiffs' employment ended in November 2024 and the action was filed on December 8, 2025. (Compl., ¶ 18.) (Lab. Code, §§ 558, subd. (a), 226, 226.3; *Falk v. Children's Hospital Los Angeles* (2015) 237 Cal.App.4th 1454, 1469 ["Claims subject to a one-year limitations period, i.e., the wage statement claim, are therefore time-barred"].)

The court denies Defendants' motion to strike paragraph 48 because Defendants have not shown that Plaintiffs' allegation that they are entitled to civil penalties based upon Defendants' underpayment of minimum and overtime wages is time barred since the Complaint does not allege that this is based on any statute that provides for penalties that fall under Code of Civil Procedure section 340 subdivision (a). (Compl., ¶ 48.)

Regarding the request for penalties pursuant to Labor Code section 1198.5 subdivision (k), the Complaint does not allege that Defendants failed to permit Plaintiffs within the time specified by subdivision (b), 30 calendar days from the date Defendants received a written request, or as agreed to in writing by the parties, to inspect or copy personnel records. (Lab

Code, § 1198.5, subds. (b)(1), (k).)

Thus, the Complaint does not allege when the statute of limitations ran because the Complaint does not allege when the violation occurred. Accordingly, the court denies the motion to strike the statutory penalties pursuant to Labor Code § 1198.5 found in paragraph 7 of the Prayer for Relief on the ground that the request is time barred by the one-year statute of limitations, but the court strikes the request on the ground that Plaintiffs failed to allege a violation of Labor Code section 1198.5 beyond a conclusory statement. (Compl, ¶ 80.)

Labor Code section 432

provides "If an employee or applicant signs any instrument relating to the obtaining or holding of employment, he shall be given a copy of the instrument upon request." (Lab. Code, § 432.) Because section 432 does not provide for any statutory penalties, the court grants the motion to strike the request for statutory penalties pursuant to Labor Code section 432 found in paragraph 7 of the Prayer for Relief.

The

burden is on the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiffs have not articulated the facts that they could allege to render their request for penalties against Defendants sufficient and therefore grants the motion to strike without leave to amend

ORDER

The court overrules defendants Mark

Diamond and Cheryl Diamond's demurrer to the first, second, fourth, fifth, and sixth causes of action.

The court denies defendants Mark Diamond and Cheryl Diamond's motion to strike paragraph 48.

The court grants defendants Mark Diamond and Cheryl Diamond's motion to strike as follows.

The court orders that paragraphs
47, 68, and 69, and Prayer for Relief
paragraphs 3 and 7 of plaintiffs Ana Heilala Vete and Lesly Hulse's
Complaint are stricken without leave to amend.

The court orders defendants Mark
Diamond and Cheryl Diamond to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 17, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court

[1]

Although Plaintiffs allege that they seek penalties pursuant to Labor Code
section 1174 (Compl., ¶ 68), section 1174 does not provide for any penalties. Penalties for failure to maintain records are
provided by Labor Code section 1174.5, but Plaintiffs do not allege that they
are requesting penalties pursuant to Labor Code section 1174.5.